

25-3141

*Barbosa da Cunha v. Freden*

# United States Court of Appeals

FOR THE  
SECOND CIRCUIT

## ORDER

At a stated term of the United States Court of Appeals for the Second Circuit, held at the Thurgood Marshall United States Courthouse, 40 Foley Square, in the City of New York, on the 25<sup>th</sup> day of September, two thousand twenty-six.

Present:

RAYMOND J. LOHIER, JR.,  
*Chief Judge,*  
RICHARD J. SULLIVAN,  
JOSEPH F. BIANCO,  
MICHAEL H. PARK,  
WILLIAM J. NARDINI,  
STEVEN J. MENASHI,  
EUNICE C. LEE,  
BETH ROBINSON,  
MYRNA PÉREZ,  
ALISON J. NATHAN,  
SARAH A. L. MERRIAM,  
MARIA ARAÚJO KAHN,  
MATTHEW A. SCHWARTZ,  
*Circuit Judges.*

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Ricardo Aparecido Barbosa Da Cunha,

*Petitioner-Appellee,*

v.

25-3141

Joseph E. Freden, Deputy Field Office Director, U.S.  
Immigration and Customs Enforcement,

*Respondent-Appellant.*

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For Respondent-Appellant:

Tiberius T. Davis, Counsel to the Assistant Attorney General (Brett A. Shumate, Assistant Attorney General, Civil Division, Yaakov M. Roth, Principal Deputy Assistant Attorney General, Drew C. Ensign, Deputy Assistant Attorney General, Benjamin Hayes, Senior Counsel to the Assistant Attorney General, Stephen J. Flynn, Assistant Director, Jessica R. Lesnau, Trial Attorney, *on the brief*), U.S. Department of Justice, Washington, DC.

For Petitioner-Appellee:

Michael K.T. Tan, American Civil Liberties Union Foundation, San Francisco, CA (My Khanh Ngo, Oscar Sarabia Roman, American Civil Liberties Union Foundation, San Francisco, CA, Judy Rabinovitz, Natalie Behr, American Civil Liberties Union Foundation, New York, NY, Amy Belsher, New York Civil Liberties Union, New York, NY, Paul O'Dwyer, Law Office of Paul O'Dwyer, P.C., New York, NY, *on the brief*).

For Amici Curiae Immigration Law Scholars, in support of Petitioner-Appellee:

Amit Jain, Roderick & Solange MacArthur Justice Center, Washington, DC.

For Amici Curiae American Immigration Council and American Immigration Lawyers Association, in support of Petitioner-Appellee:

Suchita Mathur, Emma Winger, American Immigration Council, Washington, DC.

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Following disposition of this appeal on April 28, 2026, an active judge of the Court requested a poll on whether to rehear the case in banc. A poll having been conducted and there being no majority favoring in banc review, rehearing in banc is hereby **DENIED**.

Joseph F. Bianco and Alison J. Nathan, *Circuit Judges*, joined by Eunice C. Lee, Beth Robinson, Myrna Pérez, and Sarah A. L. Merriam, *Circuit Judges*, concur by opinion in the denial of rehearing in banc.

Matthew A. Schwartz, *Circuit Judge*, joined by Richard J. Sullivan, *Circuit Judge*, concurs by opinion in the denial of rehearing in banc.

Steven J. Menashi, *Circuit Judge*, joined as to Parts I and II-E by Michael H. Park, *Circuit Judge*, dissents by opinion from the denial of rehearing in banc.

José A. Cabranes, *Circuit Judge*, filed a statement with respect to the denial of rehearing in banc.

FOR THE COURT:

Catherine O'Hagan Wolfe, Clerk

The signature of Catherine O'Hagan Wolfe is written in cursive. Overlaid on the signature is the official seal of the United States Court of Appeals for the Second Circuit. The seal is circular with a blue border containing the text "UNITED STATES" at the top and "COURT OF APPEALS" at the bottom. Inside the border, the words "SECOND CIRCUIT" are written in the center.